

02:00 PM

25-CIV-03534 JOSH RAFFAELLI VS. BROOKFIELD ASSET MANAGEMENT LLC, ET AL

LINE 9

JOSH RAFFAELLI
BROOKFIELD ASSET MANAGEMENT LLC

MARK MERMELSTEIN
JOSH A. COHEN

DEFENDANTS MOTION FOR A PROTECTIVE ORDER

TENTATIVE RULING:

The tentative ruling for Line 7 is the tentative ruling for this motion and is hereby incorporated by reference.

02:00 PM

26-CIV-03505 SHANNON PEKARY VS. PALO ALTO PARK MUTUAL WATER COMPANY, ET AL.
LINE 10

SHANNON PEKARY
PALO ALTO PARK MUTUAL WATER COMPANY

PRO PER
BRIAN A. BARNHORST

PLAINTIFF: SHANNON PEKARY'S MOTION FOR PRODUCTION OF ELECTION RECORDS AND DETERMINATION OF SCOPE OF SECTION 7616 PROCEEDINGS

TENTATIVE RULING:

Plaintiff Shannon Pekary's Motion for Production and Determination of Scope of Section 7616 Proceedings is DENIED WITHOUT PREJUDICE.

Per the notice filed July 2, 2026, the request for an order compelling production of election records is moot. The request for an order determining whether a determination of the validity of the vote approving the challenged bylaw amendments remains at issue.

The Court previously expressed some doubt as to whether the scope of this proceeding under Corporations Code section 7616 encompasses the issue of whether the bylaw amendments were validly approved by the members at the 2025 annual meeting. This doubt arises in part due to the fact that former section 315 of the Civil Code—one of the predecessors of Corporations Code section 7616—"was enacted in order that court might have power to proceed in a summary manner to test the title of directors to office without recourse to the slow and cumbersome proceeding of quo warranto." (*Boericke v. Weise* (1945) 68 Cal.App.2d 407, 410.)

The text of former section 315 did not limit its scope to "any election or appointment of any director of any corporation" (Corp. Code, § 7616, subd. (a)) but permitted, "[u]pon the application of any person or body corporate aggrieved by any election held by any corporate body, the district court of the district in which such election is held must proceed forth with to hear the allegations and proofs of the parties, or otherwise inquire into the matters of complaint, and thereupon confirm the election, order a new one, or direct such other relief in the premises as accords with right and justice." (*Wickersham v. Brittan* (1892) 93 Cal. 34, 36 [italics added], quoting former Civil Code § 315.)

The language of the modern provisions of the Corporations Code, which permit courts to determine the validity of "any election or appointment of any director of any corporation" rather than "any election of a corporate body," supports a conclusion that the Legislature was limiting the reach of Section 7616 only to challenges regarding a director's office and voting rights related thereto.

That being said, there is no indication this motion has been served on any party. While no other party was entitled to notice by statute, because none had appeared at the time the motion was filed (see Code Civ. Proc., § 1010), "notice is usually considered essential in any application affecting the rights of the adverse party," "[e]ven if no statute makes notice a condition. (6 Witkin, Cal. Proc. (6th ed. 2026) Proceedings Without Trial, § 7; see *McDonald v. Severy* (1936) 6 Cal.2d 629, 631 ["general rule is that notice of motion must be given whenever the order sought may affect the rights of an adverse party"].)
